

Comments

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#1

1. The Preparation section needs to make a big deal out of the fact that depending on what state they are in, something related to the kind of CBA we are recommending may be REQUIRED. It may not be called a CBA. It might be a host agreement. The same thing we are suggesting may not be required or enforceable by law, what do they do then? Also, anyone using our dashboard MUST begin by researching and understanding what a developer is required/expected to do by law. They need to find out all the regs and procedures mandated by the state, county, and local government. This step needs to be highly visible in the Dash Board from the beginning Especially the role of the state (and relevant state law) needs to be called out at the very beginning of the Dashboard. Should the group using the Dashboard be in touch with the relevant state and local agencies (that have land use control powers) before they even start to fill out our various templates?

Insert as box before steps (part of landing page) -

Understand State & Local Legal Requirements Before You Begin

Before any CBA discussion begins, communities and municipalities must understand what state, county, and local laws require and don't require.

In many states, developers are legally required to negotiate Host Community Agreements, Development Agreements, or Impact Mitigation Agreements. These may function like CBAs even if they are not called "CBAs," and in some cases they may limit or shape what can be negotiated. In other states, CBAs may be voluntary, or certain types of benefits may not be enforceable through a contract.

If the agreement you want is not required or not fully enforceable under state law, communities still have several options:

- Use the CBA as a voluntary agreement to document commitments and create public accountability.
- Tie certain commitments to local permits or approvals, which may provide stronger enforceability than a standalone CBA.
- Use MOUs or "good-neighbor agreements" when contract enforceability is limited.
- Work with state agencies to incorporate mitigation or monitoring requirements into state permits or environmental review conditions.

Begin by researching:

- State siting laws and permitting requirements
- Whether host agreements or impact mitigation agreements are required
- What benefits or mitigation measures are already mandated
- Whether municipalities have authority to negotiate additional benefits
- Whether state agencies (energy siting boards, environmental agencies, utility regulators) must be involved

Early outreach is essential. Communities should contact relevant state and local agencies before filling out templates or drafting benefit lists. These agencies can clarify:

- What the developer must do by law
- What timelines apply
- What parts of the project are negotiable
- How CBAs or host agreements interact with permitting

Suggested Checklist:

- ☐ Identify all required state, county, and municipal approvals
- ☐ Determine whether a CBA, HCA or similar contract is required
- ☐ Contact relevant state agencies (energy siting, environmental review, utility regulators)
- ☐ Review state statutes on community benefits, mitigation, or siting
- ☐ Map out which benefits are legally required vs. negotiable

Add to end of "What is a CBA?"

Note: Some states require similar agreements under different names (e.g., Host Community Agreements). This dashboard applies to both required and voluntary agreements.

#2

2. Most states have an EIR/EIS system in place. A new facility developer (whether public or private) will have to prepare an impact assessment. Sometimes both state and federal impact assessment laws apply. A completed EIA is key to a successful joint fact finding effort. It may require a new section of the material that Lucy prepared to show where, when and how a community should get involved and be able to use an EIA or an EIR. We think they need to be involved in scoping the EIA. We need to explain how to do that. Commenting on the draft EIA is something that the community needs to do and they won't get to set the schedule or coordinate it with the plans to negotiate an CBA. We need to show a diagram of how EIA fits in with CBA.

Insert as box before steps (part of landing page) -

Environmental Review Happens on Its Own Timeline

Most states require an Environmental Impact Assessment (EIA) or Environmental Impact Report (EIR) for new facilities. Many projects also trigger federal NEPA review, which runs in parallel. These processes have legally fixed schedules that do not adjust to community needs or CBA negotiations.

Environmental review is one of the most important sources of data, impact analysis, and mitigation requirements that communities can use in CBA negotiations.

Key points:

- Scoping is your first and best opportunity to influence what gets studied.
Communities should submit scoping comments identifying the impacts they want analyzed (noise, groundwater, traffic, EJ impacts, health risks, etc.).
- Draft EIA/EIR review is essential.
Even though the timeline is set by the agency, communities should review the draft and submit comments that highlight missing data, underestimated impacts, or mitigation needs.
- EIA findings directly inform CBA priorities.
Use the EIA to identify short-term construction impacts, long-term operational impacts, environmental risks that require mitigation, monitoring needs, & impacts that may require compensation.
- Some mitigation can be required through permits, not the CBA.
Understanding what will be handled through environmental review helps communities focus CBA negotiations on benefits that are not already mandated.
- CBA negotiations and EIA review will overlap but they are not coordinated.
Communities should plan for the fact that environmental review will move forward on its own schedule.

Diagram - aligning the two timelines

#3

3. All the lists that Lucy has made for the various sections don't emphasize compensation sufficiently. (to land owners, residents, community members). We need to explain what we mean by fair compensation for a range of possible or likely impacts and how compensation is calculated. The compensation might be to individual landowners or residents. It might go to the municipality.

Common benefit category hover boxes (landing page):

Make sure compensation is explained i.e. "can include direct payments to affected landowners or residents, impact fees to the municipality, or community benefit funds tied to the scale and duration of project impacts"

In Step 1.1, Things to pin down early, add:

- Identify which impacts may require compensation, either to individual landowners/residents (easements, noise or traffic impacts) or to the municipality (impact fees, infrastructure contributions)

In Step 2.5, Document what you hear, add:

- Noting concerns about impacts that may warrant compensation, such as property value changes, noise, traffic, or loss of use

In Step 3.1, Issue identification negotiation timeline, add:

- Identify compensation needs for short-term construction impacts and long-term operation impacts, and discuss potential valuation methods.

In Step 3.1, Option development negotiation timeline, add:

- Evaluate compensation options such as direct payments, easements, impact fees, or community benefit funds, using comparable agreements or impact valuations as benchmarks.

In Step 3.5, Understanding power dynamics, add:

Communities may need expert support to estimate fair compensation for impacts, since developers often control valuation data. Bringing in neutral technical experts can help level the playing field.

To priorities worksheet, under priority benefits, add:

- ☐ Compensation for impacts (to landowners, residents, or the municipality)

Under commitment duration, add:

- ☐ Long-term compensation or impact payments

To negotiation preparation worksheet, under interests and priorities, add:

- ☐ Identify which impacts require compensation and who should receive it

Under draft benefit concepts, add:

- ☐ Potential compensation mechanisms (direct payments, easements, impact fees, community funds)

#4

4. Same thing with mitigation. We need to explain what this means in the short term (ie construction impacts) and long-term (harms of various kinds over time). Environmental impacts need to be mitigated. This may be the most important part of the CBA. The way the material reads now, short-term and long-term environmental impacts don't get enough priority.

In Step 1, understand project context, things to pin down early, add:

- Identify which environmental impacts require mitigation, whether short-term construction impacts or long-term operational harms that may persist for decades.

In Step 2, document what you hear, this means, add:

- Identifying concerns about environmental impacts that require mitigation, including construction-phase disruptions and long-term risks such as noise, groundwater contamination, or habitat loss.

In Step 3, issue identification negotiation timeline, phase 2, add:

- Identify both short- and long-term mitigation measures for traffic, noise, and ecological impacts

In Step 3, option development, add:

- Evaluate mitigation options using environmental review findings, technical studies, and comparable projects to determine what level of mitigation is feasible and necessary

In Step 3, understanding power dynamics, strategies to rebalance power, add:

- Communities may need technical support to understand environmental impacts and evaluate whether proposed mitigation measures are adequate, since developers often control the underlying data.

In priorities worksheet, under priority benefits add:

- ☐ Environmental mitigation (short-term and long-term)

Under commitment duration, add:

- ☐ Long-term environmental monitoring and mitigation

In negotiation preparation worksheet, under interests and priorities, add:

- ☐ Identify required mitigation measures for short-term construction impacts and long-term operational impacts

Under draft benefit concepts, add:

- ☐ Potential mitigation measures (noise buffers, groundwater protections, habitat restoration, traffic management, long-term monitoring)

Where impacts are mentioned throughout steps - distinguish between short-term construction impacts and long-term operational impacts

#5

5. Every time the DashBoard talks about community impacts, it should distinguish short-term from long-term impacts. There are lots of sections of the draft where short-term vs. long-term impacts, needs and commitments are not clearly delineated. They need to be.

On landing page, as subtitle/caption for common benefits table:

These benefits address both short-term construction impacts (noise, dust, traffic disruptions) and long-term operational impacts (noise, visual impacts, ecological harm, groundwater risks). CBAs should distinguish between the two.

In Step 1, Understand the project context & what the developer needs, add:

Clarify which impacts are short-term (construction-phase) and which are long-term (operational or environmental), since each requires different mitigation and benefit commitments.

In Step 2, Start engagement early and make it continuous, add:

Engagement should surface concerns about both short-term construction impacts and long-term operational impacts, since these shape different types of commitments.

In Step 2, Document what you hear, this means, add:

- Categorizing feedback into short-term impacts (construction disruptions) and long-term impacts (environmental, health, or quality-of-life effects).

In Step 3, Option development, add:

Options should be evaluated separately for short-term and long-term impacts to ensure commitments match the duration and severity of each impact.

In Step 3, Understanding power dynamics, add:

Developers often frame impacts narrowly; communities should request data that distinguishes short-term construction impacts from long-term operational harms.

In priorities worksheet, community needs, add:

- ☐ Short-term impacts (construction)
- ☐ Long-term impacts (operations/environment)

Commitment duration, add:

- ☐ Short-term commitments
- ☐ Long-term commitments

In negotiation preparation worksheet, interests and priorities add:

- ☐ Identify which impacts are short-term vs. long-term and what commitments are needed for each

Draft benefit concepts, add:

- ☐ Short-term mitigation measures and long-term monitoring or mitigation strategies

#6

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Add, maybe in Step 1, Assess your capacity & identify support needs, or somewhere more central:

Note on Legal Liability and SLAPP Protections:

Community members who participate in public meetings, comment processes, or CBA-related engagement are generally protected under state and federal free-speech laws when expressing views on matters of public concern. In the past, some developers have attempted to use SLAPP lawsuits (Strategic Lawsuits Against Public Participation) to intimidate or silence community activists. Many states now have anti-SLAPP statutes that allow courts to quickly dismiss these suits and, in some cases, require the developer to pay the defendant's legal fees.

The scope of these protections varies by state, and CBAs themselves are legal contracts that may create obligations for the organizations or municipalities that sign them. Individual residents typically do not incur personal liability simply for participating in engagement processes, offering input, or serving on advisory groups. Still, communities should seek legal advice if they have concerns about potential exposure or if a developer threatens litigation.

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In Step 1, Assess your capacity and identify support needs, add:

Participating effectively in a CBA process often involves costs, including legal review, technical analysis, facilitation, translation, and community outreach. These costs vary widely by project size and community capacity. Communities should identify early which expenses they may incur and what external funding sources are available.

Add to suggested checklist:

- ☐ Identify potential funding sources for participation costs (e.g., state intervenor funding, municipal support, philanthropic grants, or developer contributions administered through a neutral community foundation)

In Step 1, consider bringing in a neutral facilitator or mediator, add:

Neutral facilitation may involve costs, which can sometimes be covered through state technical assistance programs or developer-funded community foundations.

In Step 2, Start engagement early and make it continuous, add:

Communities should anticipate the costs of inclusive engagement, such as translation, childcare, stipends, or meeting logistics, and identify funding sources early.

In Step 2, Make engagement inclusive and accessible, add to checklist:

- ☐ Identify funding for engagement supports (translation, childcare, food, stipends), which may be available through state programs or developer-funded community foundations.

In Step 3, negotiation timeline issue identification, add:

- Identify the expected costs of technical analysis, legal review, or facilitation needed to evaluate issues, using illustrative ranges based on similar projects.

In readiness checklist, organizational capacity, add:

- ☐ Do we have funding to support legal, technical, or facilitation needs?

External support and partnerships, add:

- ☐ Have we identified potential funding sources (state intervenor funding, municipal support, philanthropic grants, developer-funded community foundations)?

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